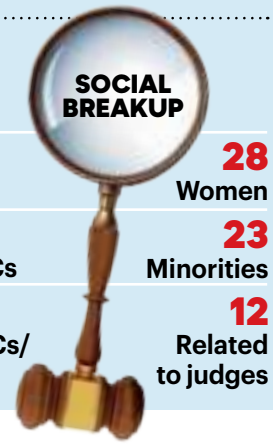
THE TRANSPARENCY DOSSIER

303
Candidates proposed by the SC collegium for appointment as judges to HCs between Nov. 9, 2022, and Nov. 10, 2024

170
Names have been approved by the Centre

23
SC judges of the total 33 have declared assets



and overreach. Facing these pressures, the top court's senior judges resolved to shine light on the institution's inner workings. Incoming Chief Justice Bhushan Ramkrishna Gavai led the initiative; outgoing CJI Sanjiv Khanna, too, was eager to leave a legacy of integrity with a drive signalling an effort at self-correction. Civil society groups and legal experts have long called for such transparency to pre-empt any perception of corruption or impropriety. A crucial push came from a 2023 Rajya Sabha standing committee report recommending that judges' asset declarations be mandatorily made public.

While the move has been widely welcomed, it is not without its shortcomings. The declarations are self-reported and lack any external audit or verification. Critics argue that one-time disclosures are going to be merely symbolic unless they are regularly updated and independently reviewed.

OPENING THE 'BLACK BOX'

Equally pathbreaking is the SC's decision to shed light on its long-shrouded judicial appointment process. For the first time, the court has made public comprehensive records of all recommendations made for HC and a handful of SC appointments between November 9, 2022, and May 5, 2025. Of the 170 HC appointments finalised, seven (4 per cent) were from Scheduled Castes, five from Scheduled Tribes (3 per cent), 21 from Other Backward Classes (12 per cent), 23 from minority communities (14 per cent), and 28 (16 per cent) were women. For a system long criticised for being dominated by privileged caste males from elite metropolitan backgrounds, this level of transparency enables a long-overdue public audit of social representation. The current numbers show only marginal improvement on this front. Between 2018 and 2023, only 17 per cent of HC appointments were from SCs, STs or OBCs. It's now 19 per cent.

The top court also sought to address persistent allegations of "judicial nepotism". For instance, in the first week of May, it emerged that among the 33 sitting SC judges, at least 10 are closely related to former judges, while another 10 are sons of lawyers. The newly released data reveals that 12 of 170 recent HC appointees, or roughly 7 per cent, had close relatives serving as judges in the higher judiciary.

Critics argue that one-time disclosures of assets are merely symbolic unless they are regularly updated and independently reviewed

Since its inception in the 1990s, the collegium system, wherein the CJI and a small group of senior judges select candidates for elevation, has functioned as a virtual "black box". That has now changed, at least in part. Between November 2022 and May 2025, the SC collegium recommended 303 names for appointment to HCs, of which 170 were confirmed by the government. Dozens of recommendations remain pending, a telling reminder of the persistent tug-of-war between the executive and judiciary over control of appointments. Under CJI Khanna's tenure alone (November 2024 to May 2025), 51 recommendations were approved, while 12 others are still awaiting government nod.

Critics of the collegium system contend that the publication of asset declarations and appointment data, while welcome, merely scratches the surface. While some tools, such as the High Court Performance Appraisal Template, have now entered the public domain, other key documents, like internal collegium letters, remain classified as "confidential", even when they contain little more than perfunctory justifications. Further, while the appointment handbook for HCs now states that the government must accept reiterated collegium recommendations, the memorandum of procedure for SC appointments lacks such clarity, leaving a significant gap in protocol.

PRE-EMPTING OVERSIGHT?

Many observers see this as a tactical compromise: by offering a degree of openness, the judiciary is trying to safeguard its broader autonomy. As one senior lawyer notes, this sends a clear message: the judiciary is willing to put its own house in order, reducing the rationale for legislative or executive encroachment. Expectedly, initial responses from political leaders suggest the move is yielding results. Dhankhar praised CJI Khanna for the transparency shown in both the Varma matter and the asset disclosures. The law ministry, too, has commended the judiciary's "initiative to enhance accountability" and holding off, at least for now, on any fresh attempt to revive the National Judicial Appointments Commission legislation. However, whether this commitment to transparency is a passing gesture or the beginning of a shift in ethos, will become clear only in the coming months. ■